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ESTABLISHED BY WILLIAM AND ROBERT CHAMBERS, 1832

CONDUCTED BY R. CHAMBERS (SECUNDUS)

No. 123.—VOL. III.

SATURDAY, MAY 8, 1886.

PRICE 1½d.

COTTAGE IDEAS.

BY RICHARD JEFFERIES.

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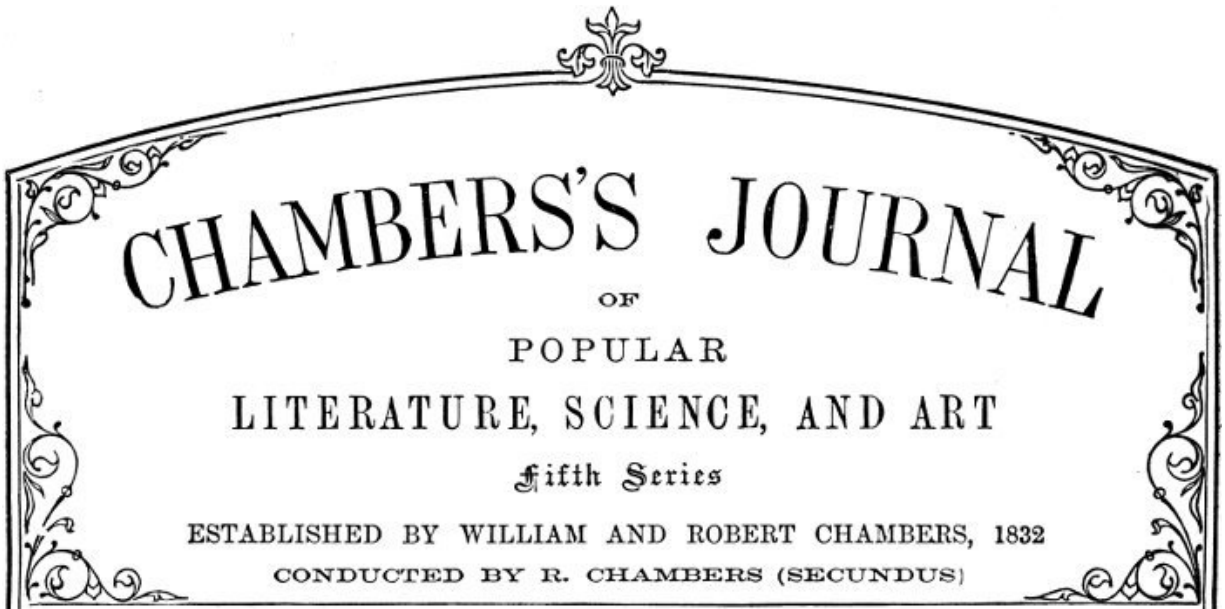
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sanitation; and the father a drunkard, who scarcely brought enough money
indoors to supply bread.

You would imagine that a mother in such a position would impress upon her children the necessity of endeavouring to do something. For the sake of that spirit of independence in which they seem to take so much pride, one would suppose they would desire to see their children able to support themselves. But it is just the reverse; the poorer folk are, the less they seem to care to try to do something. ‘You come home if you don’t like it;’ and stay about the hovel in slatternly idleness, tails bedraggled and torn, thin boots out at the toes and down at the heels, half-starved on potatoes and weak tea—stay till you fall into disgrace, and lose the only thing you possess in the world—your birthright—your character. Strange advice it was for a mother to give.

Nor is the feeling confined to the slatternly section, but often exhibited by very respectable cottagers indeed.

‘My mother never would go out to service—she *wouldn’t* go,’ said a servant to her mistress, one day talking confidentially.

‘Then what did she do?’ asked the mistress, knowing they were very poor people.

‘Oh, she stopped at home.’

‘But how did she live?’

‘Oh, her father had to keep her. If she wouldn’t go out, of course he had to somehow.’

This mother would not let her daughter go to one place because there was a draw-well on the premises; and her father objected to her going to another because the way to the house lay down a long and lonely lane. The girl herself, however, had sense enough to keep in a situation; but it was distinctly against the feeling at her home; yet they were almost the poorest family in the place. They were very respectable, and thought well of in every way, belonging to the best class of cottagers.

Unprofitable sentiments! injurious sentiments—self-destroying; but I always maintain that sentiment is stronger than fact, and even than self-interest. I see clearly how foolish these feelings are, and how they operate to the disadvantage of those whom they influence. Yet I confess that were I in the same position, I should be just as foolish. If I lived in a cottage of three rooms, and earned my bread by dint of arm and hand under the sun of summer and the frost of winter; if I lived on hard fare, and, most powerful

of all, if I had no hope for the future, no improvement to look forward to, I should feel just the same. I would rather my children shared my crust, than fed on roast-beef in a stranger's hall. Perhaps the sentiment in my case might have a different origin, but in effect it would be similar. I should prefer to see my family about me—the one only pleasure I should have—the poorer and the more unhappy, the less I should care to part with them. This may be foolish, but I expect it is human nature.

English folk don't 'cotton' to their poverty at all; they don't eat humble-pie with a relish; they resent being poor and despised. Foreign folk seem to take to it quite naturally; an Englishman, somehow or other, always feels that he is wronged. He is injured; he has not got his rights. To me, it seems the most curious thing possible that well-to-do people should expect the poor to be delighted with their condition. I hope they never will be—an evil day that—if it ever came—for the Anglo-Saxon race. There always seemed to me to be something peculiarly repulsive in the doctrine of the old Catechism, once so studiously worked into the minds of the villagers by dint of constant repetition, teaching them to be satisfied 'To do their duty in the station to which it had pleased God to call them'—that is, to hedge and ditch and wash greasy plates all their lives, according as they were male or female, handmaids or man-jacks. To touch hats and forelocks, to bob courtesies (not out of courtesy as equals, but in sign of low degree). To be lowly of spirit before clay clad in broadcloth—a species of idolatry—to beat down and destroy those inward feelings of independence natural to all. Anything more opposed to that onward movement in which the hopes of the human race are bound up, it would be impossible to conceive.

One girl prided herself very much upon belonging to a sort of club or insurance—if she died, her mother would receive ten pounds. Ten pounds, ten golden sovereigns, was to her such a magnificent sum, that she really appeared to wish herself dead, in order that it might be received. She harped and talked and brooded on it constantly. If she caught cold, it didn't matter, she would say, her mother would have ten pounds. It seemed a curious reversal of ideas, but it is a fact that poor folk in course of time come to think less of death than money. Another girl was describing to her mistress how she met the carter's ghost in the rickyard; the wagon-wheel went over him; but he continued to haunt the old scene, and they met him as commonly as the sparrows.

‘Did you ever speak to him?’

‘Oh no. You mustn’t speak to them; if you speak to them, they’ll fly at you.’

In winter, the men were allowed to grub up the roots of timber that had been thrown, and take the wood home for their own use; this kept them in fuel the winter through without buying any. ‘But they don’t get *paid* for that work.’ She considered it quite a hardship that they were not paid for taking a present. Cottage people do look at things in such a curious crooked light! A mother grumbled because the vicar had not been to see her child, who was ill. Now, she was not a church-goer, and cared nothing for the Church or its doctrines—that was not it—she grumbled so terribly because ‘it was his place to come.’

A lady went to live in a village for health’s sake, and having heard so much of the poverty of the farmer’s man, and how badly his family were off, thought that she should find plenty who would be glad to pick up extra shillings by doing little things for her. First, she wanted a stout boy to help to draw her Bath-chair, while the footman pushed behind, it being a hilly country. Instead of having to choose between half-a-dozen applicants, as she expected, the difficulty was to discover anybody who would even take such a job into consideration. The lads did not care about it; their fathers did not care about it; and their mothers did not want them to do it. At one cottage there were three lads at home doing nothing; but the mother thought they were too delicate for such work. In the end, a boy was found, but not for some time. Nobody was eager for any extra shilling to be earned in that way. The next thing was somebody to fetch a yoke or two of spring-water daily. This man did not care for it, and the other did not care for it; and even one who had a small piece of ground and kept a donkey and water-butt on wheels for the very purpose, shook his head. He always fetched water for folk in the summer when it was dry, never fetched none at that time of year—he could not do it. After a time, a small shopkeeper managed the yoke of water from the spring for her—*his* boy could carry it; the labourers could not. He was comparatively well to do, yet he was not above an extra shilling.

This is one of the most curious traits in the character of cottage folk—they do not care for small sums; they do not care to pick up sixpences. They seem to be *afraid of obliging people*—as if to do so, even to their own

advantage, would be against their personal honour and dignity. In London, the least trifle is snapped up immediately, and there is a great crush and press for permission to earn a penny, and that not in very dignified ways. In the country, it is quite different. Large fortunes have been made out of matches; now your true country cottager would despise such a miserable fraction of a penny as is represented by a match. I heard a little girl singing —

Little drops of water, little grains of sand.

It is these that make oceans and mountains; it is pennies that make millionaires. But this the country-man cannot see. Not him alone either; the dislike to little profits is a national characteristic, well marked in the farmer, and indeed in all classes. I, too, must be humble, and acknowledge that I have frequently detected the same folly in myself, so let it not be supposed for an instant that I set up as a censor; I do but delineate. Work for the cottager must be work to please him; and to please him, it must be the regular sort to which he is accustomed, which he did beside his father as a boy, which *his* father did, and *his* father before him; the same old plough or grub-axe, the same milking, the same identical mowing, if possible in the same field. He does not care for any newfangled jobs: he does not recognise them, they have no *locus standi*—they are not established. Yet he is most anxious for work, and works well, and is indeed the best labourer in the world. But it is the national character. To understand a nation, you must go to the cottager.

The well-to-do are educated, they have travelled, if not in their ideas they are more or less cosmopolitan. In the cottager, the character stands out in the coarsest relief; in the cottager, you get to ‘bed-rock,’ as the Americans say; there’s the foundation. Character runs upwards, not downwards. It is not the nature of the aristocrat that permeates the cottager, but the nature of the cottager that permeates the aristocrat. The best of us are polished cottagers. Scratch deep enough, and you come to that; so that to know a people, go to the cottage, and not to the mansion. The labouring man cannot quickly alter his ways. Can the manufacturer? All alike try to go in the same old groove, till disaster visits their persistence. It is English human nature.

IN ALL SHADES.

CHAPTER XXV.

THEY had reached the top of the stone steps, when two voices were borne upon them from the two ends of the corridor opposite. The first was Mr Dupuy's. 'Where is she?' it said.—'Mrs Pereira, where's Nora? You don't mean to say this is true that Tom tells me—that you've actually gone and let her sit out a dance with that conceited nigger fellow, Dr Whitaker? Upon my word, my dear madam, what this island is coming to nowadays is really more than I can imagine.'

The second voice was a louder and blander one. 'My son, my son,' it said, in somewhat thick accents, 'my dear son, Wilberforce Clarkson Whitaker! Where is he? Is he in de garden? I want to introduce him to de governor's lady. De governor's lady has been graciously pleased to express an interes in de inheritor of de tree names most closely bound up wit de great social revolution, in which I have had de honour to be de chief actor, for de benefit of millions of my fellow-subjects.—Walkin' in de garden, is he, wit de daughter of my respected friend, de Honourable Teodore Dupuy of Orange Garden? Ha, ha! Dat's de way wit de young dogs—dat's de way wit dem! Always off walkin' in de garden wit de pretty ladies. Ha, ha, ha! I doan't blame dem!'

Dr Whitaker, his face on fire and his ears tingling, pushed on rapidly down the very centre of the garden, taking no heed of either voice in outward seeming, but going straight on, with Nora on his arm, till he reached the open window-doors that led directly into the big ballroom. There, seething in soul, but outwardly calm and polite, he handed over his partner with a conventional smile to Captain Castello, and turning on his heel, strode away bitterly across the ballroom to the outer doorway. Not a few people noticed him as he strode off in his angry dignity, for Tom Dupuy had already been blustering—with his usual taste—in the corridors and refreshment room about his valiant threat of soundly horsewhipping the woolly-headed mulatto. In the vestibule, the doctor paused and asked for his dust-coat. A

negro servant, in red livery, grinning with delight at what he thought the brown man's discomfiture, held it up for him to put his arms into. Dr Whitaker noticed the fellow's malevolent grin, and making an ineffectual effort to push his left arm down the right arm sleeve, seized the coat angrily in his hand, doubled it up in a loose fold over his elbow, and then, changing his mind, as an angry man will do, flung it down again with a hasty gesture upon the hall table. 'Never mind the coat,' he said fiercely. 'Bring round my horse! Do you hear, fellow? My horse, my horse! This minute, I tell you!'

The red-liveried servant called to an invisible negro outside, who soon returned with the doctor's mountain pony.

'Better take de coat, sah,' the man in livery said with a sarcastic guffaw. 'Him help to proteck your back an' sides from Mistah Dupuy, him horsewhip!'

Dr Whitaker leapt upon his horse, and turned to the man with a face livid and distorted with irrepressible anger. 'You black scoundrel, you!' he cried passionately, using the words of reproach that even a mulatto will hurl in his wrath at his still darker brother, 'do you think I'm running away from Tom Dupuy's miserable horsewhip? I'm not afraid of a hundred fighting Dupuys and all their horsewhips.—You black image, you! how dare you speak to me? How dare you?—how dare you?' And he cut out at him viciously in impotent rage with the little riding-whip he held in his fingers.

The negro laughed again, a loud hoarse laugh, and flung both his hands up with open fingers in African derision. Dr Whitaker dug his spurless heel deep into his horse's side, sitting there wildly in his evening dress, and turned his head in mad despair out towards the outer darkness. The moon was still shining brightly overhead, but by contrast with the lights in the gaily illuminated ballroom, the path beneath the bamboo clumps in the shrubbery looked very gloomy, dark, and sombre.

Two or three of the younger men, anxious to see whether Tom Dupuy would get up 'a scene' then and there, crowded out hastily to the doorway, to watch the nigger fellow ride away for his life for fear of a horsewhipping. As they stood in the doorway, peering into the darkness after the retreating upright figure, there came all at once, with appalling suddenness, a solitary vivid flash of lightning, such as one never sees outside the tropics, illuminating with its awful light the whole length of the gardens and the

gully beneath them. At the same second, a terrific clap of thunder seemed to burst, like innumerable volleys of the heaviest artillery, right above the roof of the governor's bungalow. It was ghastly in its suddenness and in its strength. No one could say where the lightning struck, for it seemed to have struck on every side at once: all that they saw was a single sheet of all-pervading fire, in whose midst the mulatto and his horse stood silhouetted out in solid black, a statuesque group of living sculpture, against the brilliant fiery background. The horse was rearing, erect on his hind-legs; and Dr Whitaker was reining him in and patting his neck soothingly with hand half lifted. So instantaneous was the flash, indeed, that no motion or change of any sort was visible in the figures. The horse looked like a horse of bronze, poised in the air on solid metal legs, and merely simulating the action of rearing.

For a minute or two, not a soul spoke a word, or broke in any way the deathless silence that succeeded that awful and unexpected outburst. The band had ceased playing as if by instinct, and every person in the whole ballroom stood still and looked one at another with mute amazement. Then, by a common impulse, they pressed all out slowly together, and gazed forth with wondering eyes upon the serene moonlight. The stars were shining brightly overhead: the clap had broken from an absolutely clear sky. Only to northward, on the very summits of the highest mountains, a gathering of deep black clouds rolled slowly onward, and threatened to pass across the intervening valley. Through the profound silence, the ring of Dr Whitaker's horse's hoofs could be heard distinctly down below upon the solid floor of the mountain pathway.

'Who has left already?' the governor asked anxiously of the negro servants.

'Dr Whitaker, your Excellency, sah,' the man in red livery answered, grinning respectfully.

'Call him back!' the governor said in a tone of command. 'There's an awful thunderstorm coming. No man will ever get down alive to the bottom of the valley until it's over.'

'It doan't no use, sah,' the negro answered. 'His horse's canterin' down de hillside de same as if him starin' mad, sah!' And as he spoke, Dr Whitaker's white shirt-front gleamed for a second in the moonlight far below, at a turn of the path beside the threatening gully.

Almost before any one could start to recall him, the rain and thunder were upon them with tropical violence. The clouds had drifted rapidly across the sky; the light of the moon was completely effaced; black darkness reigned over the mountains; not a star, not a tree, not an object of any sort could now be discerned through the pitchy atmosphere. Rain! it was hardly rain, but rather a continuous torrent outpoured as from some vast ærial fountain. Every minute or two, a terrific flash lighted up momentarily the gloomy darkness; and almost simultaneously, loud peals of thunder bellowed and re-echoed from peak to peak. The dance was interrupted for the time at least, and everybody crowded out silently to the veranda and the corridors, where the lightning and the rain could be more easily seen, mingling with the thunder in one hideous din, and forming torrents that rushed down the dry gullies in roaring cataracts to the plains below.

And Dr Whitaker? On he rode, the lightning terrifying his little mountain pony at every flash, the rain beating down upon him mercilessly with equatorial fierceness, the darkness stretching in front of him and below him, save when, every now and then, the awful forks of flame illumined for a second the gulfs and precipices that yawned beneath in profoundest gloom. Yet still he rode on, erect and heedless, his hat now lost, bareheaded to the pitiless storm, cold without, and fiery hot at heart within. He cared for nothing now—for nothing—for nothing. Nora had put the final coping-stone on that grim growth of black despair within his soul, that palace of nethermost darkness which alone he was henceforth to inhabit. Nay, in the heat and bitterness of the moment, had he not even sealed his own doom? Had he not sunk down actually to the level of those who despised and contemned him? Had he not been guilty of contemptuous insolence to his own colour, in the words he had flung so wildly at the head of the negro in livery? What did it matter now whatever happened to him? All, all was lost; and he rode on recklessly, madly, despairingly, down that wild and precipitous mountain pathway, he knew not and he cared not whither.

It was a narrow track, a mere thread of bridle-path, dangerous enough even in the best of seasons, hung half-way up the steep hillside, with the peak rising sheer above on one hand, and the precipice yawning black beneath on the other. Stones and creepers cumbered the ground; pebbles and earth, washed down at once by the violence of the storm, blocked and obliterated the track in many places; here, a headlong torrent tore across it with

resistless vehemence; there, a little chasm marked the spot where a small landslip had rendered it impassable. The horse floundered and reared and backed up again and again in startled terror; Dr Whitaker, too reckless at last even to pat and encourage him, let him go whatever way his fancy led him among the deep brake of cactuses and tree ferns. And still the rain descended in vast sheets and flakes of water, and still the lightning flashed and quivered among the ravines and gullies of those torn and crumpled mountain-sides. The mulatto took no notice any longer; he only sang aloud in a wild, defiant, half-crazy voice the groaning notes of his own terrible Hurricane Symphony.

So they went, on and down, on and down, on and down always, through fire and water, the horse plunging and kicking and backing; the rider flinging his arms carelessly around him, till they reached the bend in the road beside Louis Delgado's mud cottage. The old African was sitting cross-legged by himself at the door of his hut, watching the rain grimly by the intermittent light of the frequent flashes. Suddenly, a vivid flash than any burst in upon him with a fearful clap; and by its light, he saw a great gap in the midst of the path, twenty yards wide, close by the cottage; and at its upper end, a horse and rider, trembling on the very brink of the freshly cut abyss. Next instant, the flash was gone, and when the next came, Louis Delgado saw nothing but the gap itself and the wild torrent that had so instantly cut it. The old man smiled an awful smile of gratified malevolence. 'Ha, ha!' he said to himself aloud, hugging his withered old breast in malicious joy; 'I guess dat buckra lyin' dead by now, down, down, down, at de bottom ob de gully. Ha, ha; ha, ha, ha; him lyin' dead at de bottom ob de gully; an' it one buckra de less left alive to bodder us here in de island ob Trinidad.' He had not seen the mulatto's face; but he took him at once to be a white man because, in spite of rain and spattered mud, his white shirt-front still showed out distinctly in the red glare of the vivid lightning.

UNPOPULAR RELATIONSHIPS.

HISTORIANS for the most part recount only the great events of the world; though, by brief anecdotes and familiar illustrations, they sometimes glance at the manners and morals of a particular period. But, in reality, human happiness depends far more on harmonious social relations than on changes of dynasties or the aggrandisement of empires; and a philosophical consideration of the weaknesses of human nature in connection with home-life may be as profitable to us as poring over a description of those striking events which apparently led to the rise and fall of nations. We say apparently, for the causes of most things which happen are a good deal more remote than we may fancy them.

We see how individual characters and interests and public events act and react on one another; but our reason is very apt to play at cross-purposes and mistake cause for effect. One thing, however, is certain, that the family life of a nation is the greatest of all factors in its ill or well being. A happy well-ordered home is, as a rule, the nest in which wise men and good women are most likely to be reared. Yet the ideal patriarchal life is not certain to be realised, even by those most fitted to lead it. The happiest of married couples do not always live to see their children grown up, much less to behold their children's children to the third and fourth generation. Undoubtedly, the loss of a wise and loving mother is one of the greatest misfortunes which can befall a family. This truth is in all its bearings so much a truism that it is needless to dilate on it. What we are about to consider is the prejudice which so often prevails against Step-mothers.

Let us picture to ourselves a middle-class household, with perhaps four or five children of tender age, suddenly deprived of a mother's care. Happy is it in one respect for the father, that his business avocations are imperative, and so in some measure distract him from his grief; but they at the same time prevent his supervision of home affairs, even if he be one of those effeminate men—happily few—who love to meddle in domestic matters. With the best of servants, and even with some female relative to 'manage' for him, the chances are very great that many things go wrong—that

children are either spoiled or neglected, and that daily incidents so remind him of his loss, that his sorrow even after a long interval remains unassuaged. Surely, under such circumstances to marry again is often the wisest thing a widower can do. As he has had experience of married life, it is presumable that he knows the qualities in a woman which will make him happy, and is less likely to make an imprudent marriage than a young bachelor is. In point of fact, second wives are often very admirable women, and second marriages very happy ones.

Yet it cannot be denied that the step-mother is, as a rule, looked on with suspicion by the relatives of the children who pass into her care. It seems to be of no account that hitherto she has been noted for good sense and kindness of heart—it is taken for granted that she cannot exercise these qualities in reference to the little creatures intrusted to her charge. The cruel thing is that children are often absolutely set against their father's wife by foolish people, who think they thus do homage to the memory of the dead.

‘Ah,’ sighs perhaps an aunt; ‘of course, my dear, you must call her “mother” if your father wishes it; but you must not expect her to love you as darling mamma did.’

‘But, auntie,’ the child may respond, ready with tears at the mention of the dead—‘but, auntie, she says she loves us, and kisses us as if she did.’

Upon which the auntie moans again, and with an expressive shake of the head, ejaculates: ‘I hope she does’—in a tone that implies, ‘I don't believe it.’

Children are wonderfully quick at interpreting tones, looks, and gestures.

Children are by no means all little angels, whatever certain poets may have written in laudation of them. Ingrained characteristics show themselves very early; and when the fire of rebellion to authority is kindled in their young hearts—smoulder as it may—it makes the task of governing them terribly difficult. How much wiser and kinder would it be if friends and relatives played the part of cheerful peacemakers, instead of grave-faced watchers and doubters! How really sensible it would be to teach the children that they ought to be grateful to her who comes to console their father, and to take upon herself the dead mother's duties. In a multitude of cases, this truth ought to be emphatically inculcated; for we suppose there

are few women whose ideal of happiness is marrying a widower with children.

When the second marriage takes place comparatively late in life, and when children are grown up, the trials are of a different sort. Sons already away from home, and making for themselves careers in the world; and daughters of twenty years old, likely to marry within the next few years, have often but little feeling for the loneliness of their father's declining years. Of course, elderly men sometimes do foolish things, as well as young ones; but even if the second marriage be in every respect a suitable one, the children are in too many instances jealous of the step-mother, and inclined to carp at all she does. Really, a great deal of this ill-feeling is a bad habit of thought, the result of a popular prejudice which falls in with the weak side of human nature.

But if we demur against the prevailing idea of step-mothers, what shall we say against the yet more absurd notions which abound concerning Mothers-in-law! Unjustly and, one may say, stupidly satirised as they are by pen and pencil in the comic papers, they still, as a rule, maintain the even tenor of their way, far more often as a beneficent influence than anything else. Represented as a synonym for everything that is meddling and mischief-making, we confess that in a pretty long experience we have seen but few very nearly approaching this type. But we have known many a mother who has taken the husband of a daughter to her heart as if he were indeed a son, he requiting her affection with reverential regard. Nor is this at all an unnatural thing to happen between right-minded sensible people.

The mother of grown-up sons and daughters is not generally the vulgar, ill-favoured shrew that caricaturists love to paint her; on the contrary, she is often a woman in the prime of life, very probably an influence in society, and with the wisdom that ought to come with experience of the world. She has not forgotten her own youth, and she sympathises with the young more than they quite believe. Whether it be the daughter's husband or the son's wife that has to be considered, so long as the choice be tolerably prudent, she is sure to rejoice at the prospect of happiness, and be grateful that the perils of unwise likings are over. If, unhappily, the choice has not been prudent, and yet she is unable to avert its consequences, the mother is in many cases the one to be peacemaker and make the best of everything. If it be a son's wife who needs culture, she tries to give it; if it be a daughter's

husband of small means, she ekes out income by personal sacrifices; or if she herself be too poor to do this, we have known her to help with the needle, or in some other efficient manner, when she cannot do so with the purse.

Suppose the mother-in-law does sometimes suggest or advise, is this to be considered an unpardonable offence? In point of fact, her error is often on the other side, and through a dread of seeming to interfere, she refrains from speaking the wise word in due season. Carlyle says somewhere that 'experience teaches like no other,' but takes terribly high 'school-wages' in the process. Most of us can remember occasions when we might have been spared some of the 'school-wages,' if we would have accepted, as a loving gift to profit by, the experience of our elders. How often in illness does the mother-in-law aid in nursing her grandchildren; how often, in some inevitable absence of the parents, does she prove their most trustworthy guardian!

We are afraid, however, that it is mainly when she is a widow and poor, that the mother-in-law becomes the butt of inconsiderate satirists, who fail to see the pathetic side of her position. Yet, to the honour of human nature, it may be said that there are multitudes of households in which the wife or husband's mother, wholly dependent on her children, is treated with the respect and affection proper to the circumstances, and without any associations that can recall the paltry witticisms of the comic writers. We wonder if young mothers, with their children still around them, speculate on the swiftly passing years which will change the scene! In a single decade, what alterations may there not be in the domestic circle, and how naturally may it come to pass that the daughter-in-law of to-day shall become the mother-in-law of the future.

There is another unpopular personage for whom we desire to say a good word; not that, as a rule, she is immaculate, or even as nearly so as we should like to see her—we mean the Lodging-house Keeper. She, too, has long been a favourite theme of the caricaturist, and no doubt her vocation leads up to many humorous incidents. What a life it is, if we think of it seriously for a moment! Homely but shrewd women who let lodgings often acquire a surprising knowledge of character; and indeed, if they do not, they are likely to be wofully deceived. It is as great a mistake to suppose that all tenants are true and just in their dealings, as that all landladies are grasping

and untrustworthy. Imagine a small furnished house being let to a middle-aged couple for three years at a low rent, mainly because there were no children to add to the wear and tear of furniture. But events proved that there were little grandchildren who paid lengthened visits, on which occasions a perambulator was ruthlessly wheeled about the new dining-room carpet, and similar reckless destruction of property went on in many other ways. This is a true story, and we do not much wonder that the landlady lost temper, and not being able to turn out her tenants, tried to recoup herself by all legitimate methods—especially as she was wholly dependent on her house for the means of existence.

It ought to be remembered that people do not let lodgings for pleasure; receiving inmates is always more or less a matter of business, and there should be justice and the doing as you would be done by on both sides. Sometimes the lodging-house keeper is a decayed gentlewoman, but more generally she belongs to a class socially inferior to that of her tenants. In either case, a little kindly consideration for the feelings and interests of the householder will often be amply requited. The decayed gentlewoman will keenly appreciate a manner of speaking and bargaining which seems to recognise her true position; and the ordinary lodging-house keeper is quick to distinguish ‘real gentlefolks’ from ‘stuck-up people,’ by signs which the latter rarely comprehend.

People of position resorting to the seaside for a few weeks never expect the luxuries and elegances they enjoy at home; but as they generally pay liberally for the accommodation they receive, they do require ordinary comforts. It would be greatly to the interest of all parties if lodging-house keepers would bear this in mind. Not only should bedding be faultless in point of purity, but as men do exist of six feet high and upwards, provision should be made to receive a tall inmate who could sleep without doubling himself up like a carpenter’s rule. White curtains are decidedly countrified and clean-looking; but unless there are also shutters to the bedroom windows, woe betide the light sleeper who is wakened by the early dawn. Lodging-house pillows should be more ample, and blankets more numerous than they generally are; easy-chairs should deserve their name; footstools should be discoverable; and windows and blinds should be easily manageable. The lodging-house cooking is also often capable of improvement, though, if people are content with what is called ‘good plain

cooking,' they frequently have little reason to complain; especially is this the case when the lodging-house keepers are retired servants who have lived in good families.

In return for the essential comforts described, the tenant would generally be willing to dispense with the ancestral portraits which so often decorate the walls of furnished lodgings. Staring likenesses, no doubt they are, of departed worthies; but they always seem to stare at the tenant with something like reproach at his presence; and if, as is often the case, they are veritable daubs, they become at last absolutely irritating. Also most people would rather have space for their own odds and ends, than see tables and shelves occupied by heirlooms in the shape of cracked vases incapable of holding water for flowers, but filled with dusty feathers, paper roses, or dried seaweed. Not that we despise simple ornaments; happily, many very common things are very pretty, and quite capable of pleasing the most artistic eye; it is incongruity which really offends.

But with all their shortcomings, we do not believe that, as a class, lodging-house keepers deserve the hard things which comic writers, for the sake of a joke, have said of them. Many a lodging-house keeper has a pathetic past, and a present that is a severe struggle for existence; and sometimes their worth is so appreciated that they make influential friends of their tenants. It is pleasant to hear a landlady say that she has little need to advertise; she lets her rooms on the recommendation of people who have occupied them, and often has the same family over and over again. Where this is the case, we may be pretty sure that at parting there are none of the mean squabbles about cracked china or a chipped chair-back which leave a sting of ill-feeling behind. On the contrary, there is perhaps the recollection of kind assiduity in illness, or of little services beyond the bond on one side; and on the other a pleasant consciousness that such services have been recognised.

It is possible that the tenant sometimes forgets his duties as well as the landlady hers. It is as grasping to overreach on one side as on the other. Not long ago an inquiry for lodgings was made in a popular district—they were to be perfect in a sanitary point of view, and with householders where valuable property would be safe—but because the would-be tenant would often be away, the fair applicant hoped to obtain them for an 'infinitesimal' rent. We believe she has not yet quite succeeded in her search. There are certainly unprincipled as well as inconsiderate lodgers, besides

untrustworthy landladies. We fear there are quite as many people who, convalescent after infectious diseases, take apartments in the country or at the seaside without apprising the householders of their condition; as there are lodging-house keepers who receive fresh tenants after having housed fever patients without having taken due precautions against the propagation of disease. In short, lodgers and tenants belong to the same human nature that is corrupted by evil influences, and falls but too often, each individual under his own special temptations.

SPIRITED AWAY.

IN THREE CHAPTERS.—CHAP. II.

I AWOKE suddenly and with a start, having, while in the act of stretching myself, brought my foot into violent contact with one of the rails of the bed. The pain arising from the blow was so acute as to put sleep out of question for a time, so I sat up in bed and stared about me; not that there was anything to be seen, not even the outlines of the window. Everything was intensely still; some hours had probably elapsed since my coming to bed, and no doubt the inmates of the house had retired long ago. The neighbourhood was a quiet one, apparently some distance removed from any main thoroughfare, as not even the noise of a passing cab or vehicle of any kind broke the silence—nothing, in fact, save the footsteps of some belated pedestrian, or, it might be, those of a policeman going his rounds.

When my foot became somewhat easier, I lay down again; but my brain was in full activity by this time, and I fell to musing over what I had seen of London during my after-dark ramble, and to building castles in the future. I was as wide awake as ever I had been in my life. As I lay thus, the black silence was broken by the faint creaking of a door, apparently that of the room next my own. Was it merely one of those unaccountable noises with which all watchers during the night season are more or less familiar, or was it caused by human agency? It was probably the *cafetier* or Jean stealing quietly up-stairs to bed. I had no means of even guessing the time, and instead of being asleep for hours, as I had imagined, it might not yet be much past midnight. Burglars would hardly care to visit so poor a domicile; still, it was just as well I had shot the bolt of my door before getting into bed. But, hush! what was that? Footsteps passing my door, and then softly ascending the upper flight of stairs. Some one was certainly moving about the house. But for what purpose? And now, there was the sound of more footsteps following the first. Dead silence for a few moments, and then footsteps again, but so hushed and stealthy, that it was only by holding in my breath and listening with all my might, that I could hear them at all.

What could be the meaning of proceedings so mysterious? While I was still puzzling over this question and debating with myself whether my wisest plan would not be to go to sleep and trouble myself no further in the matter, the door of some room overhead seemed suddenly to be burst open, followed immediately by a heavy trampling of feet, then a loud, sharp, inarticulate cry, a pistol-shot, the sound as it were of a brief struggle, and then nothing but the low stern tones of some one who seemed to be giving orders or instructions, and after that, a minute later, silence again the most profound. But I was out of bed by this time; and groping my way to the door, I pushed back the bolt and turned the handle, expecting, of course, that the door would open without difficulty; but it refused to yield to my efforts, and a moment or two sufficed to convince me that it was fastened from the outside. I pulled at it with all my strength, and then made out that it was held merely by a rope, which, yielding slightly to my efforts, left a space of a couple of inches between the door and the jamb. Planting one foot firmly against the wall, and pulling open the door with one hand as far as I could, I felt in my pocket with the other hand, found my knife, and opened it with my teeth; then, pushing the long sharp blade through the space between the door and the jamb, I cut through the rope that held me prisoner. A moment later, I had bounded up the stairs and had burst into one of the upper rooms, guided by a narrow fringe of light which shone from under the door. The sight that met my gaze was a strange one. The room was of considerable size; and seated on the edge of the bed, and only partially dressed, but bound and gagged, was the *cafetier*, while no great distance away stood a group of five men, in one of whom I at once recognised the stranger with the gold spectacles, although he wore no spectacles now; while another was Jean the waiter. The other three men I had never to my knowledge seen before. In the middle of the floor a revolver lay unheeded.

The eyes of all present turned on me like lightning, as I burst into the room. There was a moment or two of dead silence, then the stranger, whom for the future I will call M. Legros, in order to distinguish him from the others—although he was certainly not a Frenchman—strode towards me with a frown, and demanded by what right I had intruded there.

‘By the right which every man has to intrude when he hears a cry for help and believes there’s villainy afloat.’

‘Ah, bah! you talk like a child,’ he answered. ‘There is no villainy afloat here, young sir—of that you may rest assured. We are neither thieves nor assassins. What we are in nowise concerns you. Since you have chosen to intrude here, where your presence was certainly not required, you have only left one course open to me. You must take the consequences of your folly.’

He spoke a few words rapidly to the three strangers in a language unknown to me, and before I knew what was about to happen, I found myself seized, gagged, bound, and strapped down to a chair, as helpless as a new-born babe.

‘I am somewhat grieved to have to treat you thus,’ said M. Legros to me as soon as I had in some measure recovered my breath; ‘but your own rashness has put it out of my power to do otherwise. I may, however, tell you this for your comfort: no harm shall befall you, provided you obey implicitly the orders that may be imposed upon you. But should you make the slightest effort to escape before the time comes when I shall be prepared to bid you adieu, or should you endeavour to attract the attention of any one, you may rest assured that that moment will be the last of your life. I pray you to take my words in all seriousness. We are here to do a certain thing, and not a dozen lives will be allowed to stand in the way of our doing it.’

His tones were low, but very stern; his keen steel-gray eyes seemed to pierce me through. I never saw a face on which determination and strength of will were more clearly impressed. He was evidently a man who, whether for good or ill, would keep his word.

I glanced at Karavich. He was deathly pale, but his eyes glowed in their cavernous orbits with a sort of gloomy fire, and there was nothing of dismay or craven fear in the deep-seated gaze he bent now and again on his captors. Who and what was he? What was his crime? What had he done that he should be thus seized and gagged in the middle of the night in his own house and in the heart of London? Then, too, who and what were Legros and his confederates? I almost forgot my own predicament for a little while in asking myself these and similar questions.

Legros and the others were talking in tones that were scarcely raised above a whisper. When thus conversing among themselves both then and afterwards, they employed a language with which I had no acquaintance. It may have been Russian, or Polish, or Hungarian. I have little doubt it was

one of the three, but which one I did not know then, and I do not know to this day. Suddenly, Legros, after glancing at his watch, held up a warning finger, and silence at once fell on the group. They all stood as if listening for some expected sound. A minute later it came—the slow, heavy tramp of some one passing down the street. Could it be the night policeman going his rounds? Just as the man, whoever he might be, was passing, Legros glanced at the window, and my eyes involuntarily followed the direction of his. The window was shaded with heavy curtains, now closely drawn; the room was dimly lighted by a single candle only; from the street, even if the night had been a clear one, the house must have seemed wrapped in darkness. The silence in the room remained unbroken till the last faint echoes of the footsteps outside had died away.

As if this were a signal that had been waited for, all now became activity. Jean fetched my coat, boots, and other articles from my bedroom; the bonds that fastened me were unloosed, and I was told to at once complete my toilet. A similar process took place with regard to Karavich; but whereas, when he was fully dressed, his arms were at once strapped down again, in my case, by Legros' orders, the bonds were dispensed with. Both of us, however, were still gagged. Presently, a noise of wheels was faintly audible, which momentarily grew louder and more distinct. A long dark cloak, the collar of which effectually muffled the lower part of his face, was hastily thrown over Karavich's shoulders, while a wide-brimmed soft felt hat was placed on his head. This done, he was conducted by two of the men from the room, and I heard all three descend the stairs. By this time, the vehicle, whatever it might be, the noise of which we had heard, had drawn up opposite the house. Half a minute later, we heard it drive away, and presently all sound of it was lost in the distance.

Had Karavich been forced away in it? And if so, why, and whither was he being taken? But scarcely had I time to formulate these queries in my mind, before the noise of approaching wheels became audible for the second time. A cloak, similar to that in which the *cafetier* had been enveloped, was now thrown over my shoulders, and the collar turned up round my face. After a few whispered words of warning from Legros, I was told to follow him down-stairs as noiselessly as possible, which I proceeded to do, the fourth man bringing up the rear. By this time the second vehicle had drawn up opposite the door. The lower part of the house and the shop were in utter

darkness. Legros took me by the hand and guided me the way I was to go. Some one—Jean, I take it to have been—stood by the outer door, and opened it silently as we drew near; and so, without a word, we three passed out into the street. The fog had thinned somewhat, but not to any great extent. The light of a lamp on the opposite side of the street showed like a faint blurred point of flame seen from afar. A vehicle, which by that dim light had all the appearance of an ordinary London four-wheeled cab, with a man seated on the box, was drawn up close to the kerb. So much I was enabled to see, but no more. I was hurried at once into the vehicle; Legros and the other man got in after me; the door was shut without noise; the windows were drawn up; Jean, whom we left behind, said something to the driver; and a moment later, we were being driven rapidly away.

I was utterly at a loss to know the time; but judging by the solitude of the streets and the infrequency with which we encountered any other vehicles, it must have been still very early in the morning. Even if the night had been a perfectly clear one, there was nothing in our appearance to attract the notice of the most suspicious of policemen. A cab containing two or three occupants at an early hour in the morning in London streets, is too common an object to call for a second glance from any one who may encounter it.

We were a silent party. None of us spoke after we entered the vehicle. My companions lay back with folded arms and their hats drawn over their brows. Whether they were asleep or awake, it was impossible for me to determine. My thoughts had ample time to busy themselves with any number of perplexing problems before our drive came to an end, which it did, as nearly as I could judge, in about an hour's time. We had got off the paved streets some time before this, and were now driving over an ordinary macadamised road. Suddenly we drew up, and the same moment my two companions became on the alert.

‘Pardon me,’ said M. Legros as he drew a silk muffler from one of his pockets, ‘but it is necessary that I should blindfold you for a few minutes.’ Then he added: ‘Do implicitly as you are told; have confidence in me, and no harm shall befall you.’

Some one outside had apparently opened a pair of gates by this time; we went through, passed forward a little way farther at a walking pace, and then came to a final stand. Before this, the deft fingers of M. Legros had

effectually bandaged my eyes. The carriage-door was now opened, and one of my companions giving me his hand, helped me to alight, and then led me forward. There was an ascent of three or four steps, and then I felt that I had passed out of the cold night-air into the warmer atmosphere of a house. A minute later, my eyes were unbandaged, and, better still, the gag was removed from my mouth.

I found myself in a large and elegantly furnished room, lighted by a lamp on the centre table, and by candles in the girandoles over the chimney-piece. A wood-fire burned cheerfully in the grate. Standing with his back to it, and watching my look of amazement with an amused, cynical smile, was M. Legros. We were alone.

‘I hope you feel none the worse for your little journey?’ he said. ‘We shall have a longer one to take presently, so I think the best thing we can do is to make due preparation for it.’

‘Another journey!’ I stammered. ‘Where to, this time?’

‘That you will learn when the proper time arrives,’ he answered dryly.

‘And Karavich—will he accompany us?’ I asked.

‘Ah, bah! why trouble yourself about Karavich?’ he demanded, with a contraction of his brows. ‘He is nothing to you, nor you to him.’ Then a moment later he added, almost as if speaking to himself: ‘But yes; *ce cher* Karavich will accompany us certainly. We cannot afford to leave *him* behind.’

At this juncture, a servant appeared with a tray containing a cold chicken together with other comestibles. This was supplemented by a second tray on which were coffee, wines, and liqueurs. ‘Come,’ said Legros with a smile, as he sat down on a chair which the man had placed for him, ‘let us make ourselves what you English call jolly.’

‘Jolly!’ I ejaculated with a miserable attempt at a laugh. ‘I’m likely to feel jolly under such circumstances as these!’

‘Why not?’ he demanded blandly. ‘Ah, *mon enfant*, when you have lived as long as I have, you will have learnt that the truest philosophy is to enjoy the present while you can, and leave the future to take care of itself. Sit, and let

me assist you to a wing of this fowl; or what say you to this mayonnaise? It looks as if it might tempt an anchorite.'

'I am not hungry; I cannot eat.'

'Foolish boy! Remember you have a long cold journey before you. Try, at least, a couple of these caviare sandwiches.'

I shook my head. 'I will take a cup of coffee, nothing more.'

M. Legros pulled the ends of his moustache, but made no further attempt to persuade me; so, while I sat and sipped my coffee, he went on with his supper—if supper it could be called. He was a quick eater, and in a few minutes he rose and pushed back his chair.

After the servant left the room, except for the opening or shutting of a distant door once or twice, no sounds from without were audible. I neither heard nor saw anything either of Karavich or the others. But scarcely had M. Legros risen from the table, when once more we heard the noise of wheels—the noise as of some heavy vehicle, which, after being driven slowly up to the house, came to a halt. In the hush which followed, one could hear the pawing of the horses on the gravel and the champing of their bits. I noticed that my companion was listening as intently as I was. 'I must ask you to remain here till I rejoin you,' he said presently. 'I shall not be more than a few minutes away;' and with that he smiled, nodded, and left the room.

I had plenty of food for thought during his absence; but those readers who have followed me thus far will scarcely need to be enlightened as to the tenor of my reflections. They were anything but comforting. Scant time was, however, afforded me for perplexed broodings. Presently, a distant door seemed to open, and then came the half-hushed sound of the footsteps of several people advancing along the corridor into which the door of my room opened, then passing the door itself, and then being gradually lost in the distance. The men, whoever they might be, walked slowly and carefully and as though they were carrying some heavy burden. A few moments later, I could distinguish the voices of several people talking in low tones outside the house. My curiosity overmastered my prudence. The room had two windows, both of them having venetian blinds, now closely shut, and, in addition, long heavy curtains that reached the ground. Crossing quickly to

one of the windows, I stepped behind the curtain, and then cautiously raising one of the laths of the blind a little way, I peered through the crevice. The sight which met my eyes was one that might well make the blood of a braver man than I profess to be run cold. The fog had cleared away, and by the aid of the starlight, I could just make out what seemed to me the outlines of a hearse, with a pair of horses, standing a few yards away in the courtyard or space of ground which fronted the house. While I was still staring at this grim apparition, a couple of men carrying lighted lanterns appeared on the scene; then I saw clearly that the object I had been gazing at was indeed a hearse, but denuded of its plumes. But scarcely had I time to note this, when a procession of some half-dozen men appeared, walking two and two, and carrying on their shoulders something long, black, and heavy. For one moment I was puzzled, and then the dread certainty flashed upon me that the burden they bent under was a coffin, but not an empty one. When they came within the dim circle of light given out by the lanterns, it became plainly visible. I could bear no more. I let the blind drop, and turned away with a cold sick dread at my heart, such as I had never felt before. Had a murder just been perpetrated under that silent roof, and if so——? A dozen ghastly questions surged through my brain, not one of which I was able to answer. A few minutes later I heard, through my half-dazed senses, the hearse move away a little distance, and a second vehicle drive up and take its place. Then in came M. Legros in his overcoat and hat.

‘All is in readiness for the second stage of our journey,’ he said as he rubbed his chilled hands for a few moments over the fire.

I did not answer him. He looked sharply at me, and as he did so, a cold, dangerous glitter came into his eyes. His gaze travelled to the window, and then back to my face, and then he muttered something under his breath that sounded like a malediction. He was still bending over the grate; but when next his eyes met mine, all trace of annoyance had vanished.

‘You look as white, my friend, as if you had just seen a ghost,’ he remarked with that inscrutable smile of his. ‘You have gone too long without food. However, there’s no time now. Here, drink this,’ he added; and with that he crossed to the table and poured out a small glass of some sort of liqueur. I took it mechanically and drank it. Then Legros handed me the fur-lined cloak and my hat, and then he said: ‘Once more, and I hope for the last

time.' With that he produced the silk muffler and bandaged my eyes; then taking me by the hand, he led me from the room.

HOW TO PROVE A WILL.

IN ENGLAND.

A GREAT change has come over the procedure in proving wills and obtaining administration in England within the last thirty years. Formerly it was a mysterious, difficult, and expensive process, which few people understood; and he who had to undertake such duties was glad to place himself in the hands of a proctor, and, it may be added, was usually glad to get out of them again. The proceeding is now much more simple and intelligible, and when the property is small, is very inexpensive.

Probate, Administration, and the 'Death Duties,' as the taxes levied on inheritances have been appropriately named, are no doubt amongst the gloomiest of topics falling to be discussed in the columns of a popular journal. There are very few people of adult years, however, who have not been forced to make acquaintance with these matters in some form or other and at some time or other; and a brief account of the subject, and of the best and cheapest method of proceeding, may not be without value when the pinch of action arrives. To the poor, the knowledge that a legal title to the little properties left by their relatives can be obtained for a few shillings, and with next to no trouble, would seem to be especially desirable. To richer folk, the subject may recommend itself in another fashion. Constituted as men are, it is very certain that the distribution of property amongst survivors forms a not inconsiderable item of the alleviations provided by Mother Nature for the pain of inevitable losses by death, although the generality of us would undoubtedly refuse to indorse the remarkably frank declaration of a hard-hearted modern poet:

Sweet is a legacy, and passing sweet
The unexpected death of some old lady
Or gentleman of seventy years complete,
Who've made 'us youth' wait too, too long already.

Up to a little more than a quarter of a century ago, the business connected with the proof and custody of wills and the granting of administration in England, was conducted by officers appointed by the archbishops and bishops of the Established Church. In every city which was the seat of a bishop's see, a court existed, called the Diocesan Court, presided over nominally by the archbishop or bishop, but really by a proctor or barrister, who was the representative or 'official principal' of the ecclesiastical dignitary; with a limited number of proctors—that is, ecclesiastical lawyers—who possessed the exclusive privilege of proving wills, and whose posts were very lucrative and much coveted. Besides these Diocesan Courts, a multitude of smaller courts were scattered up and down the country, variously called Archidiaconal, Prebendal, Peculiar, or Manorial Courts, all having the power of making grants of probate or administration in their respective localities, and whose operations frequently resulted in confusion, uncertainty, and needless expense. An investigation into the origin of these small courts discloses in almost all cases curious and interesting features of those times when the authority of the Church penetrated deeply into every portion of society, and into nearly every transaction of life.

All these courts, large and small, were swept away in 1857. After several abortive attempts by successive governments, and in the teeth of great opposition from the interests affected, a measure was carried through parliament, mainly by the energy of Lord Westbury, abolishing the entire system, and creating a court new to English jurisprudence, the Court of Probate. The antique fabric embracing the Prerogative, Diocesan, and Peculiar Courts, with their vicars-general, ordinaries, advocates, surrogates, and apparitors, vanished like a dream before this drastic ordinance. The exclusive privileges of the proctors were put an end to, and all kinds of testamentary business thrown open to the legal profession. It was a rather costly process. Large compensations had to be paid to the superseded functionaries, as is not unusual in such cases; but the extinction of an effete system, and the substitution of a tribunal and a procedure adequate to the requirements of the times, were imperatively called for.

The Court of Probate thus constituted is not only a court for hearing and determining causes connected with contested wills and disputes among next of kin as to the right to property, but possesses also effective administrative machinery for the granting of probate and letters of administration. A

principal Registry at Somerset House in London, and thirty-nine District Registries distributed over England and Wales, are attached to the court, and from these registries the grants of probate and administration with which most people are familiar issue.

Did the reader ever prove a will? The phrase has a rather formidable sound, but the proceeding is a sufficiently tame and prosaic affair. A will is ordinarily 'proved' in the following manner: The executor named in the will takes it to a solicitor, and furnishes him with particulars of the name, residence, and date of death of the testator; his (the executor's) own name, residence, business, and relationship to the deceased; with an account of the nature and value of the property. This information is embodied in two affidavits—printed forms with blanks left for the details—which the executor signs, and is sworn to. The will and affidavits are then lodged by the solicitor either in the principal probate registry in London or in one of the district registries, according to the locality in which the testator resided. The documents being in proper order, a form on parchment is filled up in the probate registry, reciting the particulars contained in the affidavits; and to this form is attached a copy of the will, likewise written on parchment. The two together constitute 'the probate;' and when this is signed by the registrar and sealed with the seal of the court, the will is said to be 'proved.' The original will is forthwith enrolled and indexed in the books of the registry, where it can be perused by any person on payment of a fee of one shilling.

In proving a will, the executor may now either employ a solicitor to prepare the affidavits and take all trouble off his hands, as mentioned above, or he may apply personally at the registry for probate. Facilities for so doing are provided by law, and the grant is obtained at a lower charge than would have to be paid if the services of a professional man were engaged. The *modus operandi* is as follows: The executor himself lodges the will in the probate registry, and furnishes to the officers there the particulars already enumerated as to the testator, himself, and the property. The necessary affidavits are prepared in the registry, and there signed and sworn to by the executor, who must at the same time pay the registry charges and the probate duty. In case the attestation clause to the will is wanting, or is not in the form required by law—circumstances which frequently occur—a further affidavit is prepared; and one of the witnesses to the signing of the

will must attend at the registry and be sworn to such affidavit. In a few days afterwards, the probate of the will is issued to the executor, who can then proceed to deal with the property.

When a deceased person has made no will, but has left money, furniture, shares, or other property not being land or houses, the law steps in, and in effect makes a will for him, by dividing such property amongst his nearest kindred in certain proportions, which are pretty generally known. The instrument authorising a particular person to make the division is called Letters of Administration. If the deceased has left a widow, she is the person entitled to administer; if no widow, then the children; and if no children, then the relative nearest in blood. The widow or relative applying for administration attends at the probate registry in the same way and furnishes the same particulars as an executor who applies for probate of a will, with this addition, that the applicant for administration must enter into bond, and provide two persons of full age, who are willing to become his or her sureties for the faithful distribution of the property. Whether the estate of a deceased person be large or small in amount, the executor or administrator has the option of applying personally at a probate registry for the grant, and in every case by so doing he effects a considerable saving of expense.

The fiscal legislation of the last few years has been very favourable and indulgent to persons administering small estates. At the present time, if a man dies without a will leaving personal property not exceeding a hundred pounds, his widow or children can apply to the probate registry of the district—or if residing more than three miles from such a registry, to the registrar of the County Court of the district—for letters of administration; and the grant will cost only from five to thirteen shillings, according to the value of the property. The children of a widow are entitled to the same privilege.

Again, when a man or woman dies a little better off, either with or without a will, if the whole personal estate does not exceed three hundred pounds, application can be made to the probate registry of the district—or if there be no registry near, to the Inland Revenue office of the nearest town—for a grant of probate or administration. All the necessary papers will be prepared at one or other of these offices; and the grant will be issued on payment of thirty shillings for duty and fifteen shillings for fees. In case the property does not exceed one hundred pounds, on payment of fifteen shillings for

fees only. In none of these instances will the property be liable to legacy or other additional duty. The deceased's debts, however, are not allowed to be deducted in order to bring the property under these amounts, and the privilege is restricted to the cases of persons who have died since the 1st of June 1881. Those who remember how costly was the process of proving a will or obtaining administration in the old ecclesiastical courts, however small the property might be, and those who more recently have had to pay their solicitor's bill for the same services, will be aware that the substitution of this low tariff is a boon of a substantial character to all interested in the transfer of small estates at death.

While recent legislation has been thus favourable to the poorer classes, and has lessened the expense of obtaining grants in all cases where application is made in person at the probate registry, it has also introduced a much needed reform in the mode of levying the probate duty. The debts owing by any person at death can now be deducted from the amount of the personal property, leaving probate duty to be paid on the remainder only. Formerly, duty was required to be paid on the gross amount of the personal assets without any deduction whatever for debts. It is true that after debts were actually paid, application might be made to the Inland Revenue authorities for a return of the duty or a portion of the duty in respect of them; but difficulty and delay were sometimes experienced in obtaining such returns of duty, and frequent hardships were inflicted. Thus, where the property of a deceased person was nominally under a large amount, and the debts were almost as large, there was obviously no fund out of which probate duty could be paid. The executor was consequently out of pocket, often for a considerable time, and a disinclination to undertake such responsibilities was the natural result.

IN SCOTLAND.

The Scottish law applicable to wills has had an ecclesiastical history as well as that of England. The clergy were permitted to exercise jurisdiction in regard to divorce and succession because they were supposed to be 'just persons,' as also because they knew the art of writing better than most other ancient judges. Modern probate law does not differ materially in the two ends of the island, except in nomenclature. The chief distinction is that in

Scotland a will does not require any 'probate' or proving; it proves itself, if it be signed before witnesses; and if it be holograph—that is, in the handwriting of the testator—its authenticity or validity is assumed, so long as not impugned. The Scottish analogue of English probate is obtaining confirmation of the executor. If the executor be named in the will, he takes it to a lawyer: the lawyer makes up an inventory of the estate of the deceased. This inventory is stamped at a revenue office by a stamp corresponding in cost to the amount of the estate. The stamped inventory, after being sworn to before a justice of the peace, is presented to the sheriff-clerk of the county in which the deceased had his ordinary domicile. The sheriff-clerk, in the interests of the revenue, satisfies himself that the stamp is correct as to pecuniary amount, and then grants confirmation under the seal of the court. That confirmation is equivalent to a judicial warrant to collect every debt and realise every asset specified in the inventory. If there be no will, or no executor named in the will, the sheriff appoints an executor, or executors, according to a recognised order, those equally near in blood, or having an equal interest in the estate, being appointed jointly; a proceeding which corresponds to the granting of letters of administration by the English Probate Court.

Scotland, of course, as well as England, enjoys the benefit of the statutory provisions applicable to estates under three hundred pounds. The persons entitled to succeed, or one of them, can do all that is necessary to transfer the estate from the dead to the living without the intervention of a lawyer or the burden of his bill of costs. He can go to the sheriff-clerk of the county of the domicile, give the requisite information; and the sheriff-clerk will do all that is necessary towards the giving of confirmation, for a fee that is regulated by the amount of the estate, but which is a merely nominal fee compared with what would fall to be charged by a regular professional man.

The courts of Scotland, as a rule, decline to interfere with the administration of the estates of deceased foreigners, among whom Englishmen are included. It is a necessary condition to a Scotch court confirming an executor or appointing one that the domicile of the deceased shall have been in Scotland. Some of the English courts are guided by much more expansive ideas of their duty, and will take charge of the estate of any man, if it be large enough to promise remuneration to Chancery and Probate practitioners. Within the last few years, the English Court of Chancery

extended its long arm to administer the estates of Sir W. Stirling-Maxwell, formerly M.P. for Perthshire; and for years the officials of Chancery directed the management of his large Scotch heritable properties of Keir and Pollok, of course with such copious intelligence as Chancery persons have in regard to every property out of which money can be extracted, but perhaps not at a rate of remuneration quite so moderate as would have sufficed, had the greed of English lawyers and the benevolence of English judges permitted the estates of this eminent patriotic Scotchman to be administered according to the law of his own country. A similar stroke of usurpation was more recently attempted in regard to the estate of Orr Ewing. Less than the hundredth part of that estate, which exceeded in value a quarter of a million, had been left to a young man resident in London. This young man was under twenty-one, and therefore an English 'infant,' unable to take care of himself. Some officious person, calling himself a 'next friend' of this infant, attempted to have all this large estate transferred from Scotland to the Court of Chancery; and the Court of Chancery very kindly did what it could to gratify the zeal of this 'next friend' for the interest of the infant—and perhaps of some lawyers—of not very tender years. But this usurpation was resisted by the Scotch beneficiaries and by the Scotch courts. The House of Lords decided distinctly that the English Courts acted according to their precedents when they made this usurpation of jurisdiction over Scotch estates; and they decided also, but a good deal less distinctly, that the Scotch courts did not exceed their jurisdiction in resisting this usurpation. The courts of law in London and Edinburgh are thus in conflict; and the claims of each have so far obtained the sanction of the supreme tribunal of the country, that hereafter, unless the legislature interfere, no large Scotch succession can be considered safe from the purely benevolent but somewhat expensive supervision of the English Court of Chancery.

AN OCEAN MYSTERY.

A TRUE STORY.

THOUGH it is nearly twenty years ago since the events related below occurred, yet the impression left upon my mind has never faded or lost the vividness of its outlines; and though there is nothing really inexplicable about it, yet the dash of mystery connected with it has always marked it in my memory as an incident of an unusual order.

We were driving on our way northwards from the gloomy and savage neighbourhood of Cape Horn, homeward-bound in Her Majesty's frigate the dear old *Bruisewater*, now, alas, long since consigned to the shipbreaker. The fact of our being homeward-bound should have made all hearts light and all faces bright among our five hundred souls; but for all that, there was a general air of gloom in the ship, which was not to be accounted for save by one theory only—that of superstition. For things had not gone well with us since we had hoisted our homeward-bound pendant. True, we had sailed out of Valparaiso Bay with the said pendant streaming away, and with all our 'chummy ships' playing *Should Auld Acquaintance be forgot?* as we passed by them; and we had received and returned cheer upon cheer as we made our way to the open sea; while from the midshipmen's berth had rolled up in a rich volume of sound, every night for more than a week before, the old strain, so well known and so lovingly cherished in Her Majesty's service:

And when we arrive at Plymouth Docks,
The pretty little girls come round in flocks,
And one to the other they do say:
'Oh, here comes Jack with his three years' pay;
For I see he's homeward-bou-ou-ound,
For I see he's homeward-bound.'

But still, as I say, things had not gone well with us. We had speedily left the warmth of tropical weather, and had gradually found it colder and colder

each morning as we made our way down south towards the dreaded Cape of Storms. That was natural, and we were prepared for it; but no sooner had we got to the latitude of the Cape itself, than the wind had shifted, and we had it day after day, night after night, a hard gale right in our teeth. Bitter cold it was too, with tearing storms of snow and hail—heavy thundering seas sweeping us fore and aft, bursting in upon our weather-bow, and covering us with spray, that froze ere it fell upon our decks. Up aloft, everything frozen hard—running rigging as stiff and unmanageable as a steel hawser; blocks jammed with ice and snow; canvas as unyielding as a board; men up aloft for an hour or more trying to take a reef in the fore-topsail, and then so stiffened with cold themselves, as to be unable to come down without assistance: while below, the close, musty, damp, dark ship was the picture of discomfort, her decks, main and lower, always wet, often with an inch or two of ice-cold water washing about on them; soaking clothes hung up all over the place, in the wild hope that they might eventually get dry; ports and scuttles tight shut, to keep out the seas that thundered ceaselessly at them as the ship plunged and wallowed in the angry element; no fires allowed anywhere except at the cook's galley, which was always fully occupied; and no warmth to be obtained anywhere except in your hammock, and even this, in most cases, what with faulty stowage and leaky decks, was wet through.

Day after day, night after night, this state of things kept on, until there gradually crept in among the men—started, no doubt, by the older hands, always and deeply imbued with the spirit of superstition—a sort of dim suspicion that the ship was under a ban—bewitched, in fact; that, as they said, there was a Jonah aboard; and until he went overboard, we should never weather the dreaded Cape, but were doomed to thrash continually to windward, never gaining an inch on our way. Strange as it may seem, there were many, very many, among our blue-jackets who held this belief firmly, and expressed it openly. We, of course, in the midshipmen's berth, careless and light-hearted from our extreme youth, laughed at the solemn tones of the old quartermasters, who employed their hours of midnight watch on deck in narrating to us similar instances of vessels which had been thus doomed to struggle with the storm until some unknown criminal had either confessed his crime, or had voluntarily paid the penalty of it. But, as the bad weather continued, and the ship seemed quite unable to advance upon her homeward track, some of us, too, began to allow our minds to be influenced

to a certain degree by the mysterious language and ominous hints of these men, so much our elders in years, and our superiors in practical experience.

Matters had got to this pitch, and no change appeared about to take place in the aspect of the weather or the direction of the wind, when one wild and wretched forenoon at seven bells (eleven-thirty) the men were piped to muster on the main-deck for that one drop of comfort which they could look forward to in the day—the serving out of each man's 'tot' of grog. Faces which at other times wore a look of gloom, were brightening under the influence of the spirit; the ever-present growl was stilled for a while; the joke began to pass around as the blood warmed and flowed more rapidly through the veins, when a whisper—a sort of muttered suggestion, made at first with a kind of apologetic reluctance, but with growing confidence and insistence as it gained ground—passed through the throng of men that one of their number was missing. Such a whisper makes its way through a ship's company, however large, like a current of electricity, and so it was in this case; but at first the men kept it to themselves. It could not long, however, be concealed; and presently it spread to the midshipmen's berth; next, the wardroom heard it; and soon the captain himself was made aware of the suspicion. Well I remember, how, as we sat in the cold, damp, comfortless, dirty berth, discussing the matter with boyish eagerness, the sudden shrill pipe of the boatswain's mate burst upon our ears, followed by the hoarse cry of: 'Hands muster by open list!' So, then, the captain thought it important enough to make serious and official inquiry into. Then came the calling over of those five hundred names, with most of which we had been familiar for three years or more of our commission in the Pacific. But I am wrong—not quite all of those five hundred. There came a time when the name of one, a petty officer, was called; but no reply came to the call, and a dead silence reigned over the ship—a silence, I mean, as regards human speech or sound: the gale and the thundering seas never for a moment ceased *their* tumult. Then followed the grave and searching investigation into the mystery. Who had seen him last? Where was he then? In what state? How long ago was it? and so on, and so on; until at last the whole ship's company knew that one of their number had gone overboard—presumably in the morning watch; probably swept off by a peculiarly heavy sea, well remembered in that watch. But unknown, unheard, unseen—his cry for help, if such a cry he gave, utterly drowned and smothered in the ceaseless roar of the sea, the shriek of the wind. And so the men were

dismissed, each to his special duty; and the paymaster was directed to see that the fatal letters D.D. (Discharged dead) were placed against the unhappy man's name in the ship's books.

And now occurred a circumstance which took the whole ship by storm, as it were, and which, mere accident and coincidence as it was, made all the old seadogs nod their heads and eye the younger men meaningly, as who would say, 'What did I tell you?' while they, on their part, were firmly impressed with the lesson in cause and effect thus so pointedly placed before them. It was close upon noon when the fact of a man being lost was clearly established; and ere the afternoon watch was over, the sky had cleared, the storm had dropped, the wind had shifted right round, and was now blowing dead fair! There was no room for more argument—the oldsters had it all their own way; the scoffers were silenced.

The ship now, in a few hours, rounded the Cape, which before had seemed an impossible obstruction to her, and made her way unhindered to the north; but the feelings engendered by the events immediately preceding this change had taken too strong a hold upon the men to pass lightly away, and in many a long first or middle watch the subject of the disappearance of the lost shipmate and its immediate effect upon the elements was discussed with bated breath, and many an ominous shake of the head was given as the opinion was moodily expressed that 'We'd not done with him yet.' And when, a few days afterwards, on a Sunday morning during divine service, the quartermaster of the watch came creeping and tiptoeing down the ladder to report something to the commander, who at once followed him silently up the after-hatchway, but a few minutes afterwards returned and whispered mysteriously to the captain, who in his turn mounted on deck and did not come down again, we all felt that perhaps something more might be in store for us, and was even now perchance at hand. How impatiently we sat as the sermon dragged out its seemingly interminable length, and then, when at last the blessing had been given and the quick sharp voice of the first-lieutenant had issued the order, 'Boatswain's mate, pipe down!' we literally tumbled up on deck, to learn what it was that had disturbed the calm of that Sabbath forenoon. It needed but a glance. 'Icebergs!' There they were, a long array of cold, filmy, shadowy giants, looming huge in the mist with which each surrounded himself—ghostly, ghastly, clammy spectres from the very land of Death itself. Not that we thought of them then as such; no,

we were glad, we youngsters; we liked them; we said they were ‘jolly,’ though any object less gifted with an aspect of joviality one can hardly imagine. Each, as we neared it, wrapped us in its clammy shroud of death-cold fog, and chilled us to the very marrow, and, towering far above our main-royal-mast head, seemed to threaten us with instant and appalling destruction.

So we sped on, iceberg after iceberg rising above the horizon as we held our course; and, if sources of anxiety and alarm by day, how much more so by night! Often we entered a vast bank of impenetrable fog, conscious that somewhere, in its inmost recesses, lay concealed, as if waiting for its prey, a gigantic berg, but never knowing from moment to moment when or where exactly to expect it. This was a splendid chance for the croakers. Many a great solemn head was shaken, and many a jaw wagged with gloomy forebodings over that unusual and unexpected appearance of ice in the Southern Sea. By-and-by, the wind began to freshen, and signs of another gale appeared, though this time from a quarter fairly favourable to us; and with her canvas snugged down and a bright lookout forward, the old ship began to shake her sides as she hurried away from those inhospitable seas with their spectral occupants towards the inviting warmth of the tropics and the steady blast of the trade-winds.

Anxious for a breath of fresh air before turning in to my half-sodden hammock, I went on deck to take a turn with a chum, and enjoy, as we often did together, a few anticipations of the delights of home once more. It was a wild—a very wild night. There was a small moon; but the clouds were hurrying over her face in ragged streamers, and in such constant succession, that her light was seldom visible; and when she did show it for a fleeting moment, it fell upon a black, tossing, angry sea, whose waves broke into clouds of icy foam as they fell baffled off the bow of the great ship, or tried to leap savagely over her quarter. It was a hard steady gale, the wind shrieking and humming through the rigging, and the old ship herself pounding ponderously but irresistibly at the great mountains of water before her, and creaking, groaning, and complaining as she did so, masts, yards, hull, all in one strident concert together, as if remonstrating at the labour which she was forced to undergo. In spite of the moon, the night was as black as Erebus, and from the quarter-deck on which we paced, the bow of the ship was barely visible. We were just turning our faces aft, my chum

and I, in our quarter-deck walk, when a voice rang out sudden, clear, and loud forward—the voice of the starboard lookout man: ‘A bright light on the starboard bow!’ Instantly we, and indeed every soul on deck, turned and peered hard in that direction. Not a vestige of a light was to be seen! Then the voice of the officer of the watch was heard from the bridge, ordering the midshipman of the watch to go forward and find out if the man was dreaming, or if any one else had seen the light which he reported. No one else had seen it; but the man stuck to his text. He had seen for a second of time a bright light on the starboard bow—a very bright light, quite different from anything which was usually seen at sea.

‘No, sir! I beg your pardon, sir! I wasn’t asleep—not I, sir! broad awake as I am now, sir! and able to swear to it.’

By this time all hands were on the alert, and many officers, old and young, had tumbled up from below at the hail.

‘But, my good man, if it was really a light which you saw, some one else must have noticed it too.’

‘Don’t know nothin’ about that, sir; but I can swear to it. What I seen were’——

‘A bright light on the starboard beam!’ sang out the starboard waist lookout at this moment, and ‘I saw it!’ and ‘I saw it!’ echoed several voices; but before the officer of the watch could turn round towards the direction indicated, it was gone, and the starboard beam presented one uniform sheet of impenetrable blackness.

‘Waist there! What was it like?’

‘Somethin’ of a flash-light, I should say, sir,’ replied the lookout. ‘Very bright and very short—gone in a moment-like.’

By this time the captain and commander were both on the bridge, and the whole ship was alive with curiosity.

‘What can it be?’ I asked of the old boatswain against whom I brushed in the darkness as I walked aft.

‘’Tis a boat,’ said he; ‘that’s what it must be. The cap’n he allows it’s a boat, and he’s pretty sure to be right. Some poor souls whose vessel has foundered among the ice—whalers, most likely—took to the boats, they

have. I saw that there light myself—seemed very close to the water, it did. They seen our lights, and burnt a flash-light. If they got another, they'll show that, too, presently.'

And now the voice of the commander rang out: 'Mr Sights!'

'Ay, ay, sir,' replied the gunner.

'Clear away your two foremost guns on the maindeck, and fire blank charges at short intervals; and get some blue lights, and show them in the fore-rigging at once!'

'Ay, ay, sir.' And away went the gunner to see his orders carried out instantly.

But ere his head had disappeared down the hatchway—'A bright light on the starboard quarter!' roared out the marine sentry at the lifebuoy right aft; and once more everybody turned sharp round to find nothing to gaze at but the universal darkness.

'Hands, about ship!' was now the order; and in quick succession came from the bridge the well-known commands in the sharp, imperative voice of the lieutenant of the watch: 'Ease down the helm!'—'Helm's a lee!'—'Raise tacks and sheets!' &c. And as the splendid old ship answered her helm like a boat, and began to fill on the other tack, 'Maintopsail haul!'—for our courses were furled—'Head braces!' 'Of all, haul!' and we were on the other tack.

The ship was now brilliantly illuminated by half-a-dozen blue lights burnt in her fore and main rigging; while, as we began to move ahead once more, our bow guns blazed forth from the maindeck one after the other—a roar which we fondly imagined would be more welcome than the most delicious music to the ears of the poor storm-tossed castaways in that frail boat which we now hoped to rescue from the wrath of the raging sea. At intervals there appeared again the bright but transient flash which had first attracted our notice; and through the roar of the waves and the shriek of the wind, we at times imagined that we could hear human voices shouting no doubt for help, and all eyes were strained to the uttermost through the blackness to try and discern the first glimpse of the boat itself. The last flash had told us that we were steering directly for it, and on we sped, our blue lights hissing and

flaring in our rigging, our guns ceaselessly roaring out our sympathy and our desire to save.

‘Keep a sharp lookout forward there!’—‘Lifeboat’s crew, fall in aft!’ and we prepared to lower the port quarter-boat, which was told off as a ‘lifeboat’—that is, for any purposes of rescue, although the state of the sea was anything but favourable for boat-duty; but when we thought of that poor boat tossing about on the storm-vexed sea with its freight of shivering and half-drowned men, ay, and maybe a woman or two among them, and then remembered the frowning icebergs and the fearful dangers which they represented, no man hesitated, and had volunteers been called for to man the lifeboat, the whole ship’s company would have come forward. Well can I remember the almost choking feeling of thankfulness in my own heart when I thought of the wild joy of these poor outcasts at the prospect of so speedy a rescue, and anticipated the delight of welcoming them on the quarter-deck of so staunch and safe a ship. But all in a moment my anticipations and my sentiments of gratitude were scattered to the winds.

‘Keep her away, sir! keep her away!’ came a roar from the forecastle. ‘You’ll be right down upon her! A large full-rigged ship right ahead of us!’

Up went our helm, and the ship’s head paid off; and as we strained our eyes in the direction indicated, we could dimly make out, to our intense surprise and unspeakable wonder, the huge, shadowy, ghostly outline of an unusually large vessel. No signs of life appeared about her. The light which had first attracted our notice was now no longer to be seen. Her masts, yards, and sails were only just visible—not as a black hard shadow against the sky, but pale, spectral, as if mere vapour—barely to be discerned, yet leaving no room for doubt. There she sailed, a veritable phantom ship. All hands gazed at her in silence. The blue lights were allowed to burn out, and no fresh ones were lighted. The great guns ceased to thunder on the maindeck. The lifeboat’s crew muttered uneasily among themselves, as if dreading the possibility of being ordered to board so uncanny a craft; while the older hands once more shook their heads, and said ‘they knowed we ’adn’t seen the last of that poor feller as fell overboard.’

But there was nothing more for us to do. Who and what the mysterious stranger hanging on our port quarter was we could not possibly ascertain on such a night, in such a gale; and at length the order was given to ‘Wear

ship;' and we once more turned our back on the vessel which we had been so eagerly pursuing for more than an hour. As we did so, we could see that he too altered his course; his spectral yards, with their shadowy sails, swung round, and he disappeared without a sign in the darkness of the night.

'Don't tell me,' said the boatswain, 'as that there were a real ship. Didn't that poor feller disappear suddenly just before we sighted her? Answer me that! Well, then—did we ever know what become of him, eh?—No! Very well, then! That there phantom ship was to tell us as how he was drowned, that's what that were, and nobody shan't persuade me no other than that.—How do I explain them bright lights? Answer me this: Were them lights ornery lights, such as ship shows at night?—No; of course they weren't. Corpse lights!—that's my answer; and when I says corpse-lights, I means it.'

It *may* have been an honest merchantman, outward-bound, and too intent upon making a speedy voyage to 'speak' us, but, nevertheless, the boatswain's opinion was pretty generally accepted as the correct solution of what was considered to be an ocean mystery.

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